

¶7. Defendant failed to cure after notice. *Id.* at ¶8 and **Exhibit B** thereto.

After credit for amounts paid, there remains \$1,854.89 due and owing, plus costs of \$570.44. See Supporting Declaration, ¶7; see also Memorandum of Costs filed September 2, 2025.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$1,854.89, plus costs of \$570.44, for a total of \$2,425.33.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

13. 9:00 AM CASE NUMBER: N25-1152
CASE NAME: FORWARD FINANCING LLC VS. THOMAS GOWANS
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY:
TENTATIVE RULING:

Petitioner Forward Financing LLC ("Petitioner") filed a Petition to Confirm Contractual Arbitration Award on April 4, 2025 (the "Petition to Confirm"). The Petition to Confirm was set for hearing on July 29, 2025.

The Court previously continued the matter to November 25, 2025, 9:00 a.m. in Department 34 of the Court because no proof of service appeared of record on the Court's docket. Petitioner had not established that service was done in accordance with Code of Civil Procedure section 1290.4.

On July 30, 2025, Petitioner filed Proofs of Service of the Petition to Confirm and related documents as to TGLG, Inc., d/b/a Bloomin' Blinds of Contra Costa, and Thomas Gowans, an individual ("Defendants"). Notice of the continued hearing date on the Petition to Confirm was also given. See Notice of Hearing filed and served August 7, 2025.

Background

An arbitration was conducted between the parties as set forth in the Award of Arbitrator

dated May 2, 2025 (the “Arbitration Award”).

The Arbitration Award was issued as against both Defendants in the total amount of \$20,275.00, plus arbitration fees and costs of \$2,275.00.

Analysis

Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate that award. Code Civ. Proc. § 1285; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) (“CJER Civ. Pro.—Before Trial”), § 3.62. Such petition is a summary proceeding in the manner of and upon the notice provided by law for the making and hearing of motions, except that not less than ten (10) days’ notice of the date set for the hearing on the petition shall be given. Code Civ. Proc. § 1290.2.

The petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based must be served in the manner provided in the arbitration agreement for the service of such petition and notice. Or, if none is provided, service must be in the manner provided by law for the service of summons in an action as to service within the state (otherwise service outside the state shall be made by mailing the copy of the petition and notice and other papers by registered or certified mail). Code Civ. Proc. § 1290.4.

Once a party to an arbitration files a petition to confirm, correct or vacate an award, a response must be filed and served within ten (10) days after service of the petition, unless the court extends, or both parties agree to extend, this deadline. Code Civ. Proc. § 1290.6; see CJER Civ. Pro.—Before Trial, § 3.63.

Before confirming an award, a trial court has a duty, in order to follow the dictates of Code of Civil Procedure section 1283.4, to ensure that the arbitrator’s “award” is an “award” within the meaning of that statute. *Cinel v. Christopher* (2012) 203 Cal.App.4th 759, 767; see CJER Civ. Pro.—Before Trial, § 3.94.

The motion is unopposed and no response to the Petition to Confirm has been filed by Defendants seeking to modify or vacate the Arbitration Award. See Declaration of Petitioner filed August 18, 2025, ¶17.

The Court finds that the Arbitration Award was duly made in writing by the arbitrator(s) and constitutes a determination of all the questions submitted to the arbitrator(s), the decision of which was necessary in order to determine the controversy. Accordingly, the Court confirms the Arbitration Award as made.

Disposition

The Court finds and orders as follows:

1. The Petition to Confirm is GRANTED and the Arbitration Award is CONFIRMED.
2. Petitioner to submit a proposed form of Judgment for approval and entry by the Court. See Code Civ. Proc. § 1287.4.